IN THE UNITED STATES PATENT AND TRADEMARK OFFICE

APPLICANT'S RESPONSE TO NOTICE TO FILE MISSING PARTS

(PETITION FOR EXTENSION OF TIME, CONDITIONAL REQUEST FOR SUSPENSION, SUBSTITUTE SPECIFICATION WITH CERTIFICATION OF NO NEW MATTER, REPLACEMENT CLAIMS, REPLACEMENT ABSTRACT, FORMAL STANDALONE DRAWINGS, PERFECTED INVENTOR DECLARATION, AND DEPOSIT ALLOCATION REQUEST)

Applicant / Inventor:	Reinaldo Javier Aguiar Marcano
Application Number:	19/560,031
Filing Date:	March 7, 2026
Confirmation Number:	2356
Examiner:	DEMETRIUS JONES
Art Unit:	Pre-Examination / Technology Center 2100
Customer Number:	226458
Entity Status:	SMALL ENTITY (37 CFR § 1.27)
Title of Invention:	METHOD AND SYSTEM FOR PIXEL-BASED NETWORK ROUTING IN A MASSIVELY PARALLEL OPTICAL INTERCONNECT

Commissioner for Patents

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Alexandria, VA 22313-1450

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RESPONSE TO NOTICE TO FILE MISSING PARTS

In response to the Notice to File Missing Parts mailed August 18, 2026, Applicant respectfully submits this comprehensive response curing all cited formal defects, settling statutory pre-examination fees under Small Entity status, and perfecting the application record for immediate advancement to examination.

I. Reaffirmation of Small Entity Status (37 CFR § 1.27)

Applicant hereby formally reaffirms his entitlement to Small Entity status pursuant to 37 CFR § 1.27. As established in the Verified Statement of Small Entity Status recorded on October 18, 2026, Applicant is an independent sole inventor who has not assigned, granted, conveyed, or licensed, and is under no obligation under contract or law to assign, grant, convey, or license, any rights in the invention to any person, business, or entity that would not qualify as a small entity under 37 CFR § 1.27. All fee calculations and statutory schedules herein strictly adhere to Small Entity rates.

II. Resolution of Formal Defects and Filing of Curative Instruments

Concurrently herewith, Applicant submits a complete curative filing envelope comprising the following standalone instruments:

1. **Document 01:** This Transmittal Response and Statutory Fee Allocation Request;
2. **Document 02:** Conditional Petition for Extension of Time under 37 CFR § 1.136(a);
3. **Document 03:** Conditional Request for 6-Month Suspension of Action under 37 CFR § 1.103(a);

4. **Document 04:** AIA Inventor's Oath or Declaration under 37 CFR § 1.63 (Form PTO/AIA/01 compliant);

5. **Document 05:** Clean Substitute Specification complying with 37 CFR § 1.125(c) and 37 CFR § 1.52;

6. **Document 06:** Marked-Up Copy of the Specification showing deletions pursuant to 37 CFR § 1.125(c);

7. **Document 07:** Formal Standalone Drawing Sheets (FIGS. 1–3) complying with 37 CFR § 1.84;

8. **Document 08:** Standalone Replacement Claims (Claims 1–10) commencing on a separate sheet (37 CFR § 1.75(h));

9. **Document 09:** Standalone Replacement Abstract commencing on a separate sheet (37 CFR § 1.72(b)).

Substitute Specification and 37 CFR § 1.125(b) Certification

Applicant concurrently files a Substitute Specification, including a clean copy and a marked-up copy pursuant to 37 CFR § 1.125(c). The sole purposes of this substitution are:

1. To excise embedded drawings to standalone formal sheets (37 CFR § 1.58(a));

2. To segregate the claims and abstract to separate sheets (37 CFR §§ 1.72(b), 1.75(h)); and

3. To delete the paragraph titled "Statement of License Grant to the United States Government" in its entirety to preserve Applicant's Small Entity status under 37 CFR § 1.27.

Applicant hereby certifies that the technical disclosure remains invariant and that these procedural changes introduce no new matter into the application.

III. Fee Accounting and Statutory Credit Allocation Waterfall

Pursuant to 37 CFR § 1.22(b) and MPEP § 509, Applicant possesses the statutory authority to specify the application of funds held on deposit by the Office. The Notice to File Missing Parts mailed August 18, 2026 acknowledged $398.00 in unapplied deposit funds credited to this docket. (Applicant notes an administrative accounting discrepancy: the Filing Receipt dated August 18, 2026 recorded $484.00 received, and total pre-notice remittances on docket XML equal $450.00; Applicant respectfully requests reconciliation by the Application Assistance Unit).

Under governing Small Entity statutory rates (37 CFR § 1.16), mandatory base pre-examination fees total $970.00:

- Basic Utility Filing Fee (Fee Code 4011 / 2001): $70.00
- Utility Search Fee (Fee Code 2111): $308.00
- Utility Examination Fee (Fee Code 2311): $352.00
- Late Filing Surcharge (Fee Code 2051): $68.00
- Non-DOCX Filing Surcharge (Fee Code 2054): $172.00

Pursuant to 37 CFR § 1.22(b), Applicant formally requests that the Office allocate the acknowledged $398.00 unapplied deposit funds as follows:

1. **Priority 1 (Basic Filing Fee, Code 4011):** Apply $70.00 from deposit credits to fully satisfy Code 4011 in full ($70.00 paid, $0 balance);

2. **Priority 2 (Utility Search Fee, Code 2111):** Apply $308.00 from deposit credits to fully satisfy Code 2111 in full ($308.00 paid, $0 balance).

Total unapplied deposit funds absorbed by full fee satisfaction equal $378.00, leaving a remaining deposit credit balance of $20.00.

To achieve complete statutory pre-examination clearance, Applicant concurrently remits the remaining unpaid base balances via Patent Center checkout: Examination Fee (Code 2311: $352.00), Late Surcharge (Code 2051: $68.00), and Non-DOCX Surcharge (Code 2054: $172.00), totaling $592.00 in base fees, plus the processing fee for Conditional Suspension under 37 CFR § 1.103(a) (Fee Code 2830: $60.00), for a total point-of-sale checkout payment of $652.00. Across the broader portfolio, the Office of Finance currently holds over $32,758.00 in unapplied deposit funds without interest, establishing Applicant's rigorous commitment to pre-examination compliance.

IV. Closing Section and Reliefs Requested

Wherefore, Applicant respectfully requests that the Office:

1. Acknowledge the statutory timeliness of this response, filed within the initial 2-month regulatory period expiring October 19, 2026 (pursuant to 35 U.S.C. § 21(b) and 37 CFR § 1.7);

2. Accept and enter the curative formalities instruments filed concurrently herewith, including the Substitute Specification, Standalone Replacement Claims, Standalone Replacement Abstract, Formal Standalone Drawings, and AIA Inventor Declaration;

3. Allocate the $398.00 unapplied deposit funds to Fee Codes 4011 and 2111 as requested under 37 CFR § 1.22(b);

4. Enter payment of the concurrent card remittance settling all remaining pre-examination base fees and the suspension processing fee;

5. Grant Applicant's Conditional Request for 6-Month Suspension of Action under 37 CFR § 1.103(a) to take effect upon pre-examination clearance, or promptly advance the perfected application to an examining art unit.

Respectfully submitted,

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